

HOUSE No. 1997

The Commonwealth of Massachusetts

PRESENTED BY:

Thomas M. Stanley

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the protection of vulnerable adults from sexual assault committed by mandated reporters, persons in a position of trust, and providers of transportation.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>1/10/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>6/11/2025</i>

HOUSE No. 1997

By Representative Stanley of Waltham, a petition (accompanied by bill, House, No. 1997) of Thomas M. Stanley relative to the protection of vulnerable adults from sexual assault. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1768 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the protection of vulnerable adults from sexual assault committed by mandated reporters, persons in a position of trust, and providers of transportation.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 265 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by adding the following:-

3 22D. (a) Whoever, being at the time (1) a mandated reporter as defined in section 21 of
4 chapter 119, section 1 of chapter 19C, or section 15 of chapter 19A, or (2) a person with
5 supervisory responsibility or disciplinary authority over such vulnerable adult by virtue of his or
6 her legal, professional or occupational status, or (3) in the course of providing transportation, or
7 immediately before or after, as an employee or contracted service provider, has sexual
8 intercourse or unnatural sexual intercourse with, or commits indecent assault and battery upon, a

vulnerable adult as defined herein, knowing such person to be a vulnerable adult, shall be punished.

(b) Whoever commits sexual intercourse (natural or unnatural) with a vulnerable adult shall be punished by imprisonment in the state prison for not more than twenty years; and whoever commits a second or subsequent such offense shall be punished by imprisonment in the state prison for life, or for any term of years. Whoever commits an indecent assault and battery on a vulnerable adult shall be punished by imprisonment in the state prison for not more than ten years, or by imprisonment in the house of correction for not more than two and one-half years; and whoever commits a second or subsequent such offense shall be punished by imprisonment in the state prison for not more than twenty years. A prosecution commenced under either section of this paragraph shall not be placed on file nor continued without a finding.

(c) Consent of the vulnerable adult to such sexual intercourse or indecent assault and battery shall not constitute a defense or excuse to this offense.

(d) A vulnerable adult is a person fourteen years of age or older who at the time of the offense (1) is admitted to a mental health facility or to a community based or residential facility, or (2) is receiving community-based services through the Department of Developmental Services or the Department of Mental Health or the Massachusetts Rehabilitation Commission, or (3) is a resident of a long-term care facility.

SECTION 2. Section 178C of Chapter 6 of the General Laws, as so appearing, is hereby amended by inserting into the definition of "Sex offense" after the words "aggravated rape under section 39 of chapter 277;" the following: "sexual assault of vulnerable adults under section 22D of chapter 265;"